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IN THE CIRCUIT COURT OF THE FOURTH JUDICIAL CIRCUIT, IN AND FOR DUVAL COUNTY, FLORIDA

STEFEN WYNN,

Plaintiff,

v.

CITY OF NEPTUNE BEACH,

Defendant.

_____/

CASE NO.: 23-CA-008801
FLA BAR NO.: 0739685

SECOND AMENDED COMPLAINT

Plaintiff, STEFEN WYNN, hereby sues Defendant, CITY OF NEPTUNE BEACH, and alleges:

NATURE OF THE ACTION

1. This is an action brought under §112.3187, Florida Statutes.

2. This action involves claims which are, individually, in excess of Fifty Thousand Dollars ($50,000.00), exclusive of costs and interest.

THE PARTIES

3. At all times pertinent hereto, Plaintiff, STEFEN WYNN, has been a resident of the State of Florida and was employed by Defendant. Plaintiff is a member of a protected class due to retaliation he experienced after reporting matters that are protected under §112.3187(5), Florida Statutes.

4. At all times pertinent hereto, Defendant, CITY OF NEPTUNE BEACH, has been organized and existing under the laws of the State of Florida. At all times pertinent to this action, Defendant has been an "employer" as that term is used under the applicable laws identified above. Defendant was Plaintiff's employer as it relates to these claims.

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CONDITIONS PRECEDENT

5. Plaintiff has satisfied all conditions precedent to bringing this action, if any.

STATEMENT OF THE ULTIMATE FACTS

6. Plaintiff, a protected Whistleblower, began his employment with Defendant on or about January 6, 2020, and held the position of City Manager at the time of his wrongful termination on January 17, 2023.

7. Despite his stellar work performance during his employment with Defendant, Plaintiff was subjected to a hostile work environment, disparate treatment, different terms and conditions of employment, and held to a different standard because of his Whistleblower status, and because he reported Defendant's unlawful employment activities and was subject to retaliation thereafter.

8. The disparate treatment and retaliation came at the hands of specifically but not limited to Defendant's City Councilor Lauren Key and Defendant's City Council.

9. On March 5, 2021, Plaintiff reported in writing to Defendant's Finance Committee that the Defendant was deficient in the areas of policy and he stated that he was "aware of the deficiencies that have long plagued the City's financial management practices ...". [See Exhibit A]. This email constitutes a whistle blower disclosure by Plaintiff.

10. On March 15, 2022, Plaintiff submitted a written and signed complaint to Defendant regarding suspected fraud in its building and permit department. The complaint was submitted to Defendant's City Auditors, Purvis Gray, CPAs, through the Purvis Gray auditing software. [See Exhibit B]. Purvis Gray acknowledged receipt the same day the letter was send. In these written and signed disclosures, Plaintiff reported that money coming into the building and permit department was not matching the general ledger meaning that money paid into the City was

not being deposited into City accounts. The City Auditors, Purvis Gray, are appropriate local officials to whom reports of misspending and/or possible theft of City funds could be made and was an entity that could correct the problems reported by Plaintiff. This letter constitutes a whistle blower disclosure by Plaintiff.

11. Later in March, 2022, Plaintiff was contacted by Lauren Key, who was on Defendant's Finance Committee, and specifically asked about the disclosures he made to Purvis Gray. He told her at that time that there was misspending in the Building Permit and Plan Review processes as money was not being properly accounted for. This was an inquiry by Key during which Plaintiff responded to questions by Key and disclosed the suspected fraud discussed in paragraph 10 above. These verbal complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.

12. The Defendant's Auditors, Purvis Gray, the Defendant's City Council, Lauren Key and the Defendant's CFO were all either chief executive officers or other appropriate local officers, all of whom were in positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff.

13. In June, 2022, during a City Council meeting that Plaintiff was required to attend due to his position with the Defendant as he was required by the Council to attend all City Council meetings, he was questioned by City Council members publicly about certain practices within the Defendant City. Plaintiff responded to these questions and discussed the fact that finding anything "historical" regarding certain spending practices within the City would be "next to impossible because I couldn't pull out that miscellaneous revenue where things were going." [See Exhibit C]. These verbal complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.

14. Plaintiff later reported mismanagement of funds which was related to the Defendant's police department's spending over 100 percent of Defendant's ad valorem budget, both verbally and in writing in August, 2022. [See Exhibit F]. The disclosures referenced in this paragraph occurred during negotiations between the union for the Defendant's police department and Plaintiff, who was designated by the City Council as the Chief Negotiator for the Defendant City. Plaintiff was required by the Defendant City Council to attend these negotiations during which Plaintiff reported the serious overspending by the police department to Defendant's Chief of Police, Defendant's Chief Financial Officer, and the City Clerk, all of whom were either chief executive officers or other appropriate local officers, and all of whom were in positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff. The reporting of the misspending by Plaintiff was verbal during these negotiations but was supported by Exhibit F, showing deficits in the Police spending and that it was over budget. These verbal complaints by Plaintiff, coupled with Exhibit F which was prepared by Plaintiff to show misspending by Defendant's police department, constitute a whistle blower disclosure by Plaintiff.

15. Upon Councilor Key's marriage to Commander Key, Plaintiff began to notice questionable expenditures within the Defendant's police department pertaining to payments being made to persons and entities for whom bids were not made, a clear violation of the City's procurement policies. Plaintiff thereafter began questioning police department's expenditures to the Defendant's attorney and other commissioners due to the conflict of interest presented by Councilor Key's marriage to Commander Key who was second in charge of Defendant's police department and over its fiscal functions.

16. On August 15, 2022, Plaintiff learned that certain additional improper expenses had been made by Michael Key that were overspending the police department's budget and violated

the Defendant's procurement policy. At that time, Plaintiff called Councilor Key and told her that the police department's budget was seriously overspent, violated the Department's procurement policy and that something needs to happen immediately. Councilor Key was the head of Defendant's finance committee and would have been the proper person to correct the wrongdoing reported by Plaintiff regarding the expenditures by the Defendant's police department. But Councilor Key was married to the person who was responsible, at least in part, for the police department's overspending and violating the City's procurement policies.

17. Following that call with Lauren Key, and after believing that neither Michael Key nor his wife would rectify the conflict and the spending, Plaintiff then reported the conflict of interest to Police Chief, Richard Pike, personally during a meeting on August 15, 2022. This meeting was initiated by Plaintiff.

18. Plaintiff stated to the Chief that Commander Key and Councilor Key were committing a crime by abusing and overspending Defendant's police budget and that if the police department was going to operate over budget, the proper thing to do was for the Council to increase their budget.

19. Plaintiff also reported Commander's Key's refusal to follow proper budgetary protocols. For example, the police department employees were not submitting receipts with credit card purchases, they were not getting three quotes for bids and instead giving no bid contracts to friends, and they were submitting dual invoices for payments which resulted in duplicate payments. By way or another example, Plaintiff reported Commander Key's refusal to use Defendant's proposed contract with Enterprise Fleet Management to procure police vehicles for himself and other leaders within the police department.

20. Commander Key instead insisted on Defendant's police department purchasing a Chevy Tahoe for his use by falsely stating they were needed to respond to emergencies in flood situations due to their higher wheelbase. Councilor Key, in an effort to support her husband's personal agenda to disregard Defendant's proper budgetary protocols, later publicly opposed the proposed Enterprise contract that did not include Tahoes stating "department heads know best." This occurred during a City Council meeting.

21. Commander Key later admitted that he would not himself be responding to such a flood emergency due to him being a commander in the police department and not handling such calls personally. Thus, Commander Key did not need one of these vehicles for himself.

22. After Plaintiff reported the wrongdoing to Chief Pike, Pike apparently contacted Councilor Key and told her about Plaintiff's reporting earlier that day.

23. There was thereafter a City Council meeting on August 15, 2022, during which Plaintiff was harassed and verbally berated by Councilor Key on matters unrelated to the police department.

24. Following the City Council meeting on August 15, 2022, Plaintiff made reports of a potential conflict of interest related to Councilor Key about her husband, police department Commander Michael Key. These reports were made verbally to Lauren Key during an inquiry initiated by Key who stormed into Plaintiff's office irate about matters involving the police department that were discussed with the Police Chief earlier that day. During that meeting, initiated by Lauren Key, Plaintiff told her that she was towing a very fine ethical line pertaining to budget items and the fact that her husband was making purchases for the police department that were not following the City's procurement policies. Key became more irate and told Plaintiff that if he thought there was an ethical violation, he should just "go ahead and report it." Councilor Key

yelled at Plaintiff during this meeting and told Plaintiff to never make any allegations against her and her husband again. These verbal complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.

25. Following her angry tirade against Plaintiff, Councilor Key then stormed out of Plaintiff's office.

26. Plaintiff then drove immediately to Mayor Elaine Brown's home to report to her all that had transpired between Councilor Key and Plaintiff as related in paragraphs 23 and 24 above.

27. While discussing the situation at Mayor Brown's home, Mayor Brown received a telephone call from a prominent citizen and campaign manager. The citizen stated that they had just spoken to Councilor Key who falsely told the citizen that Plaintiff was irate with her, stormed out of his office and was going to report her for the conflict of interest which Plaintiff reported to Defendant's police chief. This call was on speaker phone so Plaintiff heard the conversation between the Mayor and the citizen.

28. In the weeks following, Plaintiff was forced to meet with Defendant's City Attorney, Zachary Roth, and various City Council members by being summoned to multiple meetings. During these meetings, between Plaintiff, one or more City Council members, the Mayor and/or the Defendant's City Attorney, none of which were initiated by Plaintiff, Plaintiff continued to report the wrongdoing by the Keys, the ethical conflict and improper spending by the City's police department. These verbal complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.

29. Following these meetings, Plaintiff was directed to apologize to Councilor Key. One City Council member actually wrote an apology for Plaintiff to give to Councilor Key.

30. On September 2, 2022, Plaintiff was forced to apologize to Key in a meeting between the two with Roth present that Plaintiff was summoned to attend.

31. Plaintiff was made to feel uncomfortable in the meeting and was told that his apology was halfhearted.

32. Councilor Key then began further berating Plaintiff and stated that she welcomed his resignation. Plaintiff did not resign.

33. Plaintiff responded to Roth by stating that he may need an attorney and that he had "had enough."

34. The next several weeks were agonizing for Plaintiff as he was forced to deal with a toxic work environment daily when he went into the office created by Defendant's Mayor, Defendant's City Attorney and the City Clerk. They were asking Plaintiff to perform duties outside his job description, and he was being pressured to again apologize to Councilor Key and to resign. At the suggestion of other Council members, Plaintiff again apologized to Councilor Key. This time it was done in writing. However, this only became another weapon which Councilor Key decided to use against Plaintiff.

35. On September 19, 2022, during a Council meeting, Plaintiff was lambasted by Councilor Key and had his work performance unjustly criticized in an effort to cover up Councilor Key's conflict of interest and to retaliate against Plaintiff for reporting the same and the police department's misspending.

36. On October 20, 2022, Plaintiff hand delivered written copies of the same information he reported to Purvis Gray on March 15, 2022 to the City Council and to the Chief Financial Officer. In these written and signed disclosures, Plaintiff reported that money coming into the building and permit department was not matching the general ledger meaning that money

paid into the City was not being deposited into City accounts. [See Exhibit D]. These written complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.

37. On October 27, 2022, Plaintiff send Exhibit D to the Defendant's attorney, Zach Roth by email and mentioned being a whistleblower. [See Exhibit E]. These written complaints by Plaintiff constitute a whistle blower disclosure by Plaintiff.

38. Between October 20, 2022 and January 17, 2023, Plaintiff was routinely asked for his resignation by the Mayor.

39. At the next best opportunity, on January 17, 2023, Plaintiff was terminated by Defendant's City Council at the urging of Councilor Key.

40. Plaintiff was terminated for his alleged failure to ensure proper permitting for a water tower built as part of a new Publix Supermarket. The tower was dubbed the "Green Monster" by Defendant and local media.

41. Contrary to the pretextual narrative pushed by Defendant to justify Plaintiff's termination, it was Defendant's Council not Plaintiff that had actual knowledge of the Green Monster before it was built.

42. Plaintiff knew the tank was needed but never received or was made aware of any application being submitted for the same.

43. Defendant's Council knew or should have known of the tank and was in regular communication with the developer. The developer began construction on the Green Monster without applying for a permit. Defendant did not even know about the construction until on or after December 9, 2022. Eric Pardee was the Building Official with Defendant who should have been held responsible for approving and/or not approving building permits. He was not fired and the approval of the tank was never even routed to Plaintiff for approval. Instead, the approval

papers were given to the Defendant's Fire Marshall for approval because it was for a fire suppression system. At no time did Plaintiff know that an application for the approval of the tank was even submitted until after the tank was built.

44. Subsequent to Plaintiff's illegal termination, upon information and belief, Defendant gave Plaintiff bad employment references hindering Plaintiff's ability to secure alternative employment.

45. The Defendant's Auditors, Purvis Gray, the Defendant's City Council, Lauren Key, the City Clerk, the City Attorney and the Defendant's CFO were all either chief executive officers or other appropriate local officers, all of whom were in positions to investigate, police, manage, or otherwise remedy the violations or acts reported by Plaintiff.

46. Plaintiff has retained the undersigned to represent his interests in this cause and is obligated to pay a fee for these services. Defendant should be made to pay said fee under the laws referenced above.

COUNT I
PUBLIC WHISTLEBLOWER RETALIATION

47. Paragraphs 1 through 46 above are incorporated herein by reference.

48. This count sets forth a claim against Defendant under §112.3187, et seq., Florida Statutes.

49. Plaintiff was a public employee protected under the provisions of Chapter 112, Florida Statutes.

50. As stated more specifically in part above, Plaintiff reported and disclosed violations of rules, regulations and laws, and/or malfeasance, misfeasance and/or gross misconduct to persons both inside and outside of his normal chain of command, and to others having the authority to investigate, police, manage and otherwise remedy the violations of rules,

regulations and laws that he reported. Plaintiff also disclosed this information when he participated in investigations, hearings, or other agency inquiries. Plaintiff reported malfeasance, misfeasance, and other acts specifically outlined in §112.3187(5), Florida Statutes.

51. After reporting these matters and/or participating in investigations, hearings, or other agency inquiries, as related in part above, Plaintiff was the victim of retaliatory actions set forth in part above including without limitation his termination.

52. Plaintiff's termination was the result of his reporting violations of rules, regulations or laws, and/or reporting malfeasance, misfeasance or gross misconduct, and/or participating in investigations, hearings or other inquiries, specified in part above.

53. The actions of all employees within Defendant who affected Plaintiff's employment adversely did so at least in part in retaliation against him for his "whistleblowing" activities.

54. As a direct and proximate result of the actions taken against him by Defendant, Plaintiff has suffered injury, including but not limited to past and future wage losses, loss of benefits, emotional pain and suffering, loss of the capacity for the enjoyment of life and other tangible and intangible damages. These damages have occurred in the past, are occurring at present and will occur in the future. Plaintiff is entitled to injunctive relief including without limitation reinstatement.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff demands judgment against Defendant for the following:

(a) that process issue and this Court take jurisdiction over this case;

(b) that this Court grant equitable relief against Defendant under the applicable counts set forth above, mandating Defendant's obedience to the laws enumerated herein and providing other equitable relief to Plaintiff;

(c) enter judgment against Defendant and for Plaintiff awarding all legally-available general and compensatory damages and economic loss to Plaintiff from Defendant for Defendant's violations of law enumerated herein;

(d) enter judgment against Defendant and for Plaintiff awarding all legally-available damages for emotional pain and suffering to Plaintiff from Defendant for Defendant's violations of law enumerated herein.

(e) enter judgment against Defendant and for Plaintiff permanently enjoining Defendant from future violations of law enumerated herein;

(f) enter judgment against Defendant and for Plaintiff awarding Plaintiff attorney's fees and costs;

(g) award Plaintiff interest where appropriate; and

(h) grant such other further relief as being just and proper under the circumstances, including but not limited to reinstatement.

DEMAND FOR TRIAL BY JURY

Plaintiff hereby demands a trial by jury on all issues herein that are so triable.

Respectfully submitted,

/s/ Marie A. Mattox
Marie A. Mattox [FBN 0739685]
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ATTORNEYS FOR PLAINTIFF

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing has been furnished to all counsel of record by eportal this 28th day of February, 2024.

/s/ Marie A. Mattox
Marie A. Mattox